

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jeffrey Tsui	Team: Squad #15	CCRB Case #: 202007278	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 11/02/2020 12:41 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 5/4/2022	Precinct: 75		
Date/Time CV Reported Mon, 11/02/2020 6:12 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 11/02/2020 6:12 PM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. POM Henry Henriquez	08780	938657	075 PCT		
2. POM Michael Gessner	18502	940186	075 PCT		
Officer(s)	Allegation	Investigator Recommendation			
A . POM Michael Gessner	Abuse: Police Officer Michael Gessner entered § 87(2)(b)	A . Exonerated			
B . POM Henry Henriquez	Abuse: Police Officer Henry Henriquez entered § 87(2)(b)	B . Exonerated			

Case Summary

On November 2, 2020, at approximately 1:30 PM in the vicinity of § 87(2)(b) in Brooklyn, § 87(2)(b) was asleep in the bedroom. § 87(2)(b) § 87(2)(b)'s ex-boyfriend, called the police and told the officers that § 87(2)(b) broke into his apartment and violated his order of protection. § 87(2)(b) left the apartment on her own upon being served. § 87(2)(b) entered the incident location with PO Henry Henriquez and PO Michael Gessner of the 75 Precinct inside the apartment (**Allegation A: Abuse of Authority: Entry of Premises, exonerated, and Allegation B: Abuse of Authority: Entry of Premises, exonerated**). § 87(2)(b) left the apartment when she was served the § 87(2)(b)'s order of protection by the police officers.

The BWCs of PO Henriquez and PO Gessner were obtained by the investigation (Board Review 3) and attached to IA #47. The BWC video was summarized in IA #59 and IA #60.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Michael Gessner entered § 87(2)(b).

Allegation (B) Abuse of Authority: Police Officer Henry Henriquez entered § 87(2)(b).

It is undisputed that PO Henriquez and PO Gessner entered § 87(2)(b) in Brooklyn with § 87(2)(b) on November 2, 2020. § 87(2)(b) called 911 and requested the assistance of the police because § 87(2)(b) was in his apartment. It is undisputed that incident location is § 87(2)(b)'s apartment.

During § 87(2)(b)'s CCRB statement (Board Review 2), she testified that the incident location was a one-bedroom apartment that belonged to § 87(2)(b). On the November 2, 2020, at approximately 1:30 PM, § 87(2)(b) was asleep in the bedroom. § 87(2)(b) stated that she was not dressed and was wrapped in a blanket. At an unspecified time, PO Gessner woke § 87(2)(b) up from sleep and told § 87(2)(b) to get dressed. PO Gessner left the bedroom and § 87(2)(b) began to record the incident. PO Gessner told § 87(2)(b) that she was not allowed in the apartment. PO Gessner presented § 87(2)(b) with documentation which stated that § 87(2)(b) was taken off the lease. Police officers served § 87(2)(b) an order of protection with her name spelled incorrectly. § 87(2)(b) told PO Gessner that she was a legal occupant because she had resided at § 87(2)(b) for more than thirty days. § 87(2)(b) told PO Gessner that he did not have documents from a housing judge. § 87(2)(b) attempted to show PO Gessner her housing documents. PO Gessner refused to see the documents. PO Henriquez held a pink skip in his hand and radioed for back up. § 87(2)(b) felt that the police officers wanted to arrest her. At an unspecified time, § 87(2)(b) asked the officers' name and badge number. The police officers verbally provided their information to § 87(2)(b). § 87(2)(b) gathered her belongings and approached the apartment entrance. § 87(2)(b) told the police officers that § 87(2)(b) stole from the apartment. § 87(2)(b) did not take anything that did not belong to her. § 87(2)(b) asked the police officers to check § 87(2)(b)'s bag. One of the officer's arm was in the motion to grab § 87(2)(b)'s bag, but ultimately stopped. PO Henriquez stepped in front of the apartment entrance. § 87(2)(b) told the police officers that they cannot stop her from leaving the apartment. The officers looked at each other. § 87(2)(b) approached the door and walked out of the apartment. § 87(2)(b) was not given a summons nor arrested. On a follow up call on June 29, 2021 (Board Review 10), § 87(2)(b) stated that she had

entered the apartment with keys of her own keys that had been in her possession since she had lived at the apartment.

§ 87(2)(b) declined to provide a statement for the investigation (Board Review 4).

According to the 911 Communication (Board Review 9), § 87(2)(b) called 911 to report that § 87(2)(b) broke into his apartment and changed the locks of his front entrance. § 87(2)(b) said § 87(2)(b) did not reside at the apartment. § 87(2)(b) said he has an order of protection against § 87(2)(b). § 87(2)(b) stated that he did not wish to go back to his apartment alone.

During PO Henriquez's CCRB interview (Board Review 6), he testified that on November 2, 2020, at approximately 1:30 PM, he and his partner, PO Gessner responded to a 911 call for a trespasser at the incident location. PO Henriquez and his partner met with PO Gessner in the lobby of § 87(2)(b). § 87(2)(b) told the officers that § 87(2)(b) was inside his single bedroom apartment and that he had an order of protection against her. § 87(2)(b) took the officers up to his apartment in an elevator. § 87(2)(b) opened the apartment door with his keys. PO Henriquez did not recall if he or his partner was presented with § 87(2)(b)'s order of protection.

During PO Gessner's CCRB interview (Board Review 5), PO Gessner testified that on November 2, 2020, at approximately 1:30 PM, he and his partner, PO Henriquez responded to a 911 call to remove a trespasser at the incident location. PO Gessner and PO Henriquez met with § 87(2)(b) in the lobby of the apartment complex. § 87(2)(b) told the police officers that § 87(2)(b) was in his apartment and was sleeping in his bed. § 87(2)(b) led the police officers upstairs to his single bedroom apartment. § 87(2)(b) opened the apartment door with keys.

According to PO Gessner's BWC video footage (Board Review 3), at the internal time stamp of 13:15:41, PO Gessner holds up a document that states that § 87(2)(b) was removed from the apartment on June 28, 2018. § 87(2)(b) admits she had not been in the apartment since October of 2019. At the internal timestamp of 13:19:22, § 87(2)(b) tells the police officers that he took time off from his job to gather documents from the building's management to present to the police. At the internal timestamp of 13:21:52, PO Gessner tells § 87(2)(b) that he called the police, and that he and his partner are assisting with § 87(2)(b)'s request. § 87(2)(b) agrees with the officer. At the internal timestamp of 13:24:04, § 87(2)(b) tells PO Gessner that he wanted § 87(2)(b) charged for breaking the locks to his apartment.

According to PO Henriquez's BWC video footage (Board Review 3), at the internal time stamp of 13:14:46, § 87(2)(b) presents PO Henriquez with a stack of documents. At internal time stamp of 13:17:56, § 87(2)(b) tells PO Henriquez that nothing in the house belonged to § 87(2)(b). At internal timestamp 13:31:09 PO Henriquez states that § 87(2)(b) was not served her order of protection. At internal timestamp of 13:32:07, § 87(2)(b) gathers her belongings, and tells the officers that she is leaving. § 87(2)(b) tells the officers that they cannot make her stay. PO Gessner tells § 87(2)(b) that his body worn camera is on, PO Gessner serves § 87(2)(b) a temporary order of protection from § 87(2)(b) in effect until February 8, 2021. At internal timestamp 13:33:55, § 87(2)(b) tells § 87(2)(b) the order of protection states she cannot come to his apartment until their next court date.

§ 87(2)(g)

§ 87(2)(g)

As such, it is therefore recommended that **Allegations A** and **Allegation B** be closed as *exonerated*.

Civilian and Officer CCRB Histories

- § 87(2)(b) has one open CCRB complaint. § 87(2)(b)
- PO Henriquez has been a member of service 15 years and a subject in 8 total CCRB cases with 16 total charges. PO Henriquez has one retaliatory summons substantiation for # 201304699. § 87(2)(g)
- PO Gessner has been a member of service 15 years and a subject in 2 additional CCRB cases with 4 total charges. PO Gessner has no substantiation. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- A Notice of Claim request was submitted to the NYC Office of the Comptroller on June 24, 2021 (Board Review 7). The request receipt will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 15

Investigator: Jeffrey Tsui INV Jeffrey Tsui 07/20/2021
Signature Print Title & Name Date

Squad Leader:  IM Simon Wang 07/20/21
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date